

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Miriam Lynch	Team: Squad #09	CCRB Case #: 201703894	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Sunday, 05/14/2017 8:15 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 11/14/2018	Precinct: 34		
Date/Time CV Reported Tue, 05/16/2017 12:36 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Tue, 05/16/2017 12:36 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Jomal Dillon	14547	961429	034 PCT
2. POM Craig Zimmer	19974	960080	034 PCT
3. POM Daniel Boylan	13957	959503	034 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Tiffany Flores	21489	954814	034 PCT
2. POM Patrick Duffy	16912	957557	034 PCT
3. POM Kevin Ferguson	14585	960527	034 PCT
4. POM Pedro Figueroa	14953	950409	034 PCT
5. POM Sohag Paul	17685	959053	034 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Craig Zimmer	Force: Police Officer Craig Zimmer used physical force against § 87(2)(b)	A . Unsubstantiated
B . POM Jomal Dillon	Force: Police Officer Jomal Dillon used physical force against § 87(2)(b)	B . Unsubstantiated
C . POM Daniel Boylan	Abuse: Police Officer Daniel Boylan threatened to arrest an individual.	C . Exonerated
D . POM Daniel Boylan	Discourtesy: Police Officer Daniel Boylan spoke discourteously to an individual.	D . Substantiated
E . POM Daniel Boylan	Abuse: Police Officer Daniel Boylan threatened an individual with the use of force.	E . Substantiated
F . POM Daniel Boylan	Off. Language: Police Officer Daniel Boylan made remarks to an individual based upon gender.	F . Substantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On May 14, 2017, at approximately 8:15 p.m., Emery § 87(2)(b) called 911 to state that he was being assaulted by his brother. He was calling from a residence, at § 87(2)(b) in Manhattan. After § 87(2)(b) made this phone call, he left the apartment. Police Officer Jomal Dillon, Police Officer Craig Zimmer, Police Officer Tiffany Flores, Police Officer Patrick Duffy, Police Officer Daniel Boylan, Police Officer Kevin Ferguson, and Police Officer Pedro Figueroa, all of the 34th Precinct, responded to the location, where they were allowed inside by several female individuals. Once inside, they saw § 87(2)(b) who allegedly tried to punch PO Dillon. PO Dillon and PO Zimmer then moved in to take § 87(2)(b) into custody. In doing so, PO Zimmer punched § 87(2)(b) in the face (**Allegation A**). PO Dillon attempted to effect a forcible takedown on § 87(2)(b) (**Allegation B**).

PO Dillon and PO Zimmer then escorted § 87(2)(b) out of the apartment, and to the elevator of the building. After they went outside, they were followed by several members of § 87(2)(b)'s household, who were approaching § 87(2)(b) as officers were trying to place him inside of a police vehicle. PO Boylan stated, "You're going to be next...She's going to be next, if she keeps talking shit and touching people...Yo, I'm going to fuck this bitch up...Shut the fuck up" (**Allegations C, D, E, and F**).

§ 87(2)(b) was charged with § 87(2)(b). He alleged that pain was caused to his upper body, face, head, shoulders, ribs, neck, back and knee as a result. Medical records were not obtained, because he did not cooperate with the investigation.

§ 87(2)(g), § 87(4-b)

During this incident, officers were wearing body cameras, which captured much of the interactions between them and the civilians involved. A portion of the body-worn camera footage can be seen below. The entirety of the footage appears in IAs #46-63, and also in IAs #100-103. Footage was also obtained from the elevators at § 87(2)(b), which captures the incident from a different angle. The relevant portion of that footage appears below:



2017-10-04_17-02-28.mp4



201703894_20170606_1204_DM.mp4

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- The arrest in this case rendered it unsuitable for mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- On August 29, 2017, a request for a notice of claim submitted to the New York City Office of the Comptroller was returned with negative results (Board Review 2).

Civilian and Officer CCRB Histories

- This is the first complaint involving [§ 87(2)(b)] (Board Review 3).
- PO Dillon has been a member of service for one year. This is the first CCRB complaint filed against him (Board Review 4).
- PO Zimmer has been a member of service for one year. This is the first CCRB complaint filed against him (Board Review 4).
- PO Boylan has been a member of service for one year. This is the first CCRB complaint filed against him (Board Review 4).

Potential Issues

- None of the civilians involved in this incident cooperated with the investigation, despite multiple contact attempts.
- In his initial complaint, [§ 87(2)(b)] listed two individuals, [§ 87(2)(b)] and [§ 87(2)(b)] as being present. He did not, however, specify their relationship to him, nor did he state their roles in the incident. Additionally, these individuals did not cooperate with the investigation.

Findings and Recommendations

Allegations not pleaded

- **Force-** [§ 87(2)(b)] in his initial, on-line complaint, stated that officers, he did not specify who, punched and kneed him, both while he was inside of his apartment and when he was in the elevator of his apartment building. [§ 87(2)(g)]
[REDACTED]
[REDACTED]
[REDACTED] The surveillance video footage and the body-worn camera footage that was obtained by the investigation does not capture any officer punching, kicking, or kneeling [§ 87(2)(b)]
- **Discourtesy-** [§ 87(2)(b)] claimed that officers used discourteous language against him, but without his cooperation, the investigation could not determine what language was used, and by which officers.
- **Force-** [§ 87(2)(b)] claimed that two female individuals were pushed while he was outside, being placed in the vehicle. Without his or any civilian's cooperation, the nature of this force could not be determined. Body-worn camera footage does not capture an officer pushing any female individual involved in this incident. .
- **Discourtesy and Offensive Language-** Body-worn camera footage captured several discourteous statements, as well as race-related remarks, [§ 87(2)(g)]
[REDACTED]
[REDACTED]
[REDACTED]

Allegation A -Force: Police Officer Craig Zimmer used physical force against § 87(2)(b)

Allegation B –Force: Police Officer Jomal Dillon used physical force against § 87(2)(b)

It is undisputed that PO Zimmer punched § 87(2)(b) in the face while he and PO Dillon were attempting to effect a forcible takedown. § 87(2)(g)

§ 87(2)(b) wrote in his on-line complaint that officers entered his bedroom, and that PO Dillon approached him, and reached out his hand to place § 87(2)(b) under arrest. § 87(2)(b) stated that in response, he “moved [his] body,” but no additional details were provided. He then stated that he was punched, and that knees were used against him. § 87(2)(b) did not cooperate with the complaint, the investigation could not clarify with him which officers used force, and when (Board Review 5).

PO Zimmer stated that he punched § 87(2)(b) after he saw § 87(2)(b) swing his fist at PO Dillon. He stated that PO Dillon moved out of the way, and then attempted to take § 87(2)(b) to the ground in order to put him in handcuffs. When PO Dillon was unsuccessful in doing so, PO Zimmer punched him once in the face. He stated that he did this in order to subdue § 87(2)(b) who had just attempted to attack PO Dillon (Board Review 6).

PO Dillon corroborated that § 87(2)(b) swung his fist at him, and that he blocked the punch. He then stated that he attempted a forcible takedown, and that PO Zimmer assisted him. PO Dillon could not, however, detail the extent of this assistance. He did not recall any officers punching § 87(2)(b) at any point (Board Review 7).

Two Threat, Resistance, and Injury reports were completed as a result of this incident. One documented “hand strikes” used against § 87(2)(b) by PO Zimmer, and stipulated that he punched § 87(2)(b) in self-defense, and in defense of other officers (Board Review 8). Another was prepared for PO Dillon. This report indicated that PO Dillon used a forcible takedown against § 87(2)(b) (Board Review 9). Both TRI reports indicate that § 87(2)(b) used hand strikes against officers during the incident.

Six officers who arrived at the apartment at the time that the job was initially assigned were wearing body cameras. PO Dillon’s camera fell off of his person at the beginning of § 87(2)(b)’s apprehension.



dillonclip.mp4

PO Zimmer’s camera stayed on, but at one point, he explained, it spontaneously shut off. It did not clearly capture what occurred immediately before it shut off.



zimmerclip.mp4

The rest of the cameras on each of the officers operated poorly in low light and with a number of people, and did not capture clearly what occurred inside of the apartment. A clip from PO Flores' footage appears below. She was the first officer to go into the apartment, with PO Dillon, but her camera does not capture clearly what happened at the time that he was punched:



floresclip.mp4

It is undisputed, both by the TRI reports and by officer testimony, that PO Zimmer punched § 87(2)(b) in the face, and that officers used force and brought § 87(2)(b) to the ground. The officers in this case claimed that § 87(2)(b) was swinging his fist at them. § 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation A** and **Allegation B** be closed as **unsubstantiated**.

Allegation C-Abuse of Authority: Police Officer Daniel Boylan threatened to arrest

§ 87(2)(b)

Allegation D- Discourtesy: Police Officer Daniel Boylan spoke discourteously to

§ 87(2)(b)

Allegation E-Abuse of Authority: Police Officer Daniel Boylan threatened with force.

Allegation F-Offensive Language: Police Officer Daniel Boylan made remarks upon the gender of

§ 87(2)(b)

It is undisputed that after § 87(2)(b) was taken into custody by officers, he was taken outside of the apartment by officers so that he could be taken to the 34th Precinct stationhouse. It is undisputed that female members of § 87(2)(b)'s household followed him and the officers outside. It is undisputed that these female members of § 87(2)(b)'s household came within five feet of the officers who were placing § 87(2)(b) into their vehicle. It is also undisputed that the female members of the household were cursing at the officers. It is undisputed that PO Boylan stated, "You're going to be next...She's going to be next, if she keeps talking shit and touching people...Yo, I'm going to fuck this bitch up...Shut the fuck up" in regards to one of the female individuals who were standing next to him (Board Reviews 10, 11, and 12).

There is no civilian statement made in regards to these allegations. PO Boylan admitted to making this statement during his interview. He stated that he told the women that they could have been arrested for obstructing governmental administration. When asked whether there was any law enforcement purpose in making the statement, PO Boylan stated verbatim: "Any law enforcement purpose in making that statement? No, it was just a statement." He also testified that

he was standing near officers, and not near civilians, when he made this statement, though he stated that he did not make this statement in reference to officers (Board Review 12).

Body camera footage shows two female civilians coming close to § 87(2)(b) as he is being arrested, repeatedly, and doing so after officers order them to move back several times. It also shows that PO Boylan makes the aforementioned statement with one of the female individuals nearby, ostensibly within several feet (Board Review 11).



2017-10-04_17-02-28.mp4

Obstructing governmental administration, as defined in the New York State penal code, occurs when individuals impair or attempt to impair the functioning of a governmental function (Board Review 13). Patrol Guides 203-09 and 203-10, respectively, prohibit discourteous remarks generally, and also ban disrespectful remarks regarding gender (Board Reviews 14 and 15).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **exonerated**.

§ 87(2)(g)

It is therefore recommended that **Allegations D, E, and F** be closed as **substantiated**.

§ 87(2)(g), § 87(4-b)

Squad #9

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date